



Appeal Decision

Site visit made on 24 August 2026

by T Bennett BA(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6010520

Harefield Grove, Rickmansworth Road, Harefield UB9 6JY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs Stevens against the decision of the Council of the London Borough of Hillingdon.
 - The application Ref is 70328/APP/2023/1772.
 - The development proposed is described as “Retrospective change of use from - This application relates to three existing timber clad barns which were originally used as chicken sheds and for storage and the change of use of the sheds for use as a dog training centre”.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The proposal is retrospective with the change of use having already commenced.
3. The appellant originally submitted a Noise Assessment as part of the original application; however, concerns were raised regarding its robustness. In response, as part of this appeal, the appellant has submitted a revised Noise Assessment¹ (NA). The Council and interested parties have had the opportunity to comment on this as part of the appeal process and I am satisfied accepting it would not result in any prejudice to such parties. Consequently, and given it does not fundamentally alter the appeal proposal, I have accepted the revised NA and determined the appeal on this basis.
4. The description of development refers only to the change of use of the chicken sheds. However, from the site block plan and submissions, it is apparent that the change of use also relates to the material change of use of the fields to the north and west of the chicken sheds for purposes associated with the dog training centre through the subdivision into four smaller recreational plots, the erection of post and mesh fencing and laying of hardstanding. I have determined the appeal on this basis.
5. The appellants within their appeal statement refer to the neighbouring property as Orchard Cottage. However, it is Cottage House that is detailed on the decision notice and which is annotated on the site location plan and referred to within the NA. I am therefore satisfied that this is an error within the appeal statement and I have determined the appeal on the basis that the nearest neighbouring property is Cottage House and refer to it as such in the decision.

¹ 24 Acoustics Technical Report: R11754-1 Rev 0

6. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework). This latest version of the Framework has introduced plan-making and national decision-making policies. It is effective from the day of publication. The main parties have had an opportunity to consider the relevance of the Framework to their case. I have considered any comments made in the determination of this appeal.

Main Issue

7. The main issue is the effect of the development on the living conditions of the future occupiers of Cottage House with regard to any noise and disturbance.

Reasons

8. The proposal seeks to use the site as a dog training and daycare facility. The operating hours are stated to be between 7am – 6pm Monday to Friday with dog training taking place on Saturdays between 10am – 2pm. A maximum of 60 dogs are stated to be on site at any one time. Whilst the operating hours and numbers of dogs differ from the information submitted on the application form, the hours and dog numbers could be conditioned, in any approval.
9. The information suggests that up to 30 dogs are able to play outside between the hours of 9am – 4pm in small groups, with a ratio of 10 dogs to 1 member of staff. No dogs or staff remain overnight at the facility.
10. The appeal site is discretely located, accessed via a gated track off Rickmansworth Road, with limited visibility from public vantage points. The training field is well contained, bound by mature trees on three sides with existing buildings screening it to the south.
11. The site is a former chicken farm and consists of a carpark, a large training field split into 4 smaller training fields and three former chicken sheds, two of which have been converted into dog care facilities.
12. There are existing commercial uses nearby. The appellant is of the view that noise emanating from these uses is not of a magnitude that causes disturbance. Indeed, on my visit, whilst only a snapshot in time, I observed that the area was relatively quiet.
13. To the north of the appeal site, sitting within a rural woodland setting, is Harefield Grove. This comprises a large Grade II manor house. It is not currently in residential use, but there is an extant permission² for its conversion into around 15 residential units and a live application awaiting determination for redevelopment works and new dwellings. This property is set approximately 100 metres away from the shared boundary with the appeal site. The Council consider that at this distance, any noise emanating from the appeal site would not be of a level that would cause disturbance to future occupiers.
14. Also within the grounds of Harefield Grove is Cottage House. This property is located approximately 8 metres from the boundary with the application site which borders the field where dog training and daycare takes place. Cottage House is currently derelict but has an existing lawful residential use and is to be retained as part of the extant permission at Harefield Grove. Therefore, Cottage House could

² Ref: 28301/APP/2013/3104

be occupied in the future and given the hours of operation and maximum number of dogs that could be present, consideration must therefore be had to the impact of the proposal on the living conditions of any future occupants.

15. The primary concern is with regards to noise from the barking of dogs which could occur in the former chicken sheds and in the training field.
16. There is no recognised British Standard or other formal guidance for the assessment of noise from barking dogs. The revised NA has been prepared by a professional consultant and has adopted the widely used methodology advocated by South Holland District Council Supplementary Planning Document (SHSPD) which compares the average noise levels from dogs with existing background noise levels at the nearest residential property. It is noted that the SHSPD is intended for assessing noise from boarding and breeding kennels which are considered to be typically louder than daycare facilities which only operate during daytime hours. The guidance recommends that the noise level from dogs barking does not exceed the background noise levels.
17. The NA has calculated, using measured background and source noise levels, the noise levels experienced at Cottage House from dogs barking in three different scenarios, firstly noise from the barn building during a weekday daytime, secondly noise from the training fields during a weekday daytime and lastly noise from the training fields during a Saturday daytime. The table below shows the difference between background noise and noise at the receptor.

Scenario	Difference
Weekday Daytime Noise Level (07.00 to 18.00 hours) – Barn building	-16 dBA
Weekday Daytime Noise Level (07.00 to 18.00 hours) – Training field	0 dB
Saturday Daytime Noise Level (10.00 to 14.00 hours) – Training field	-5 dBA

18. In determining the results, the NA explains that the calculations have factored in acoustic screening in the form of a 1.8 metre timber fence along the northern boundary between the training field and Cottage House, which is stated to provide a 10dB reduction in noise.
19. Based on the results, the NA concludes that with the mitigation, the noise arising from the change of use would not have a significant observed adverse effect on the living conditions of future occupiers at the nearest neighbouring property. However, my attention has been drawn to an acoustic review of the submitted NA by MZA Acoustics on behalf of Savills who are involved with the planning applications at Harefield Grove.
20. MZA Acoustics highlight that although the SHSPD is widely used, it uses the average noise level from dogs and does not account for the inherent attention catching nature of dog barking. They draw my attention to draft guidance produced by the Association of Noise Consultants which recommends corrections for the attention catching nature of dogs for impulsivity (between +3 and +9 dB) and for intermittency (+3dB) and therefore the subjective impact could increase by up to +12dB. Although this is a draft document and carries limited weight in itself, it nevertheless raises pertinent matters.

21. I acknowledge that the dogs would be supervised in small groups and that the appellant seeks to ensure barking is restricted. However, barking is a natural display of emotion for dogs, and it would be expected to occur at times. Dogs can be unpredictable, vary in nature, size and breed. Whilst a management plan and staff could assist in keeping barking to a minimum there may be times when it is difficult to prevent.
22. The character of dog barking is unpredictable, typically comprising intermittent and impulsive short bursts of noise that can vary in tone, pitch and volume. This would have the potential to cause some noise disturbance. Given the close proximity of the outdoor training area to the boundary with Cottage House, I find that material noise disturbance is likely to occur when dogs are in the outside area rather than when inside the former chicken sheds which are set further away from Cottage House.
23. Indeed, during my site visit, which I acknowledge represents only a snapshot in time, I observed a couple of the dogs in the outdoor area barking briefly when I was outside the site. The barking was clearly discernible and in stark contrast to the general background noise levels in the locality. Therefore, given the nature of dog barking, I consider it reasonable for acoustic feature corrections to be applied.
24. Additionally, MZA Acoustics raise concerns regarding the effectiveness of the proposed acoustic fence. They suggest that following a barrier correction calculation undertaken in accordance with ISO 9613-2, given the overall size of the training fields, the fence would likely achieve a noise reduction of around 5 to 6 dB, rather than the 10dB cited. Whilst I note that the appellant states that an attenuation of 10dB is consistent with the guidance in the SHSPD, this appears to be based on there being no direct line of sight between the source and receiver. However, Cottage House is two stories in height. Given its close proximity to the boundary and the limited height of the proposed fence, there would likely be a direct line of sight over the fence, particularly during periods of leaf fall. Consequently, I cannot be satisfied that the level of attenuation suggested by the appellant would be achieved.
25. Whilst conditions could be imposed to ensure noise from the facility is appropriately managed and controlled, given my concerns with the NA and that there are areas which are close to the boundary with Cottage House I cannot be certain, based on the information before me at this time, that when barking does occur within the training fields, that the noise levels at Cottage House would be below a Significant Observed Adverse Effect Level, irrespective of any conditions being imposed.
26. For the reasons above, at this stage and taking a precautionary approach, I cannot be sufficiently satisfied that the development would not have a material adverse effect on the living conditions of future occupiers of Cottage House with regard to noise and disturbance. The proposal therefore conflicts with Policies EM8 of the Hillingdon Local Plan: Part One - Strategic Policies (2012) (HLP1), DME 7 and DMHB 11 of the Hillingdon Local Plan: Part Two Development Management Policies (2020) (HLP2), D14 of the London Plan (2021) (LP) and the Framework. Taken together, amongst other matters, these seek to ensure proposals do not adversely affect the living conditions of neighbouring occupiers by virtue of noise and that any impacts can be adequately controlled and mitigated.

Other matters

Green Belt

27. I am conscious that the Council did not refuse the scheme on Green Belt grounds. However, given the location of the site in the Green Belt, I consider that it is important I examine this matter. The change of use comprises several elements: the change of use of the former chicken sheds which were in agricultural use to facilities for dog training and daycare, a change of use of the fields to the north and west of the sheds for use for dog training, the provision of a carpark and the erection of post and mesh fencing.
28. Policy GB6 of the Framework states that development in the Green Belt is inappropriate unless it falls within one of the categories in Policy GB7.
29. One such category outlined at paragraph 1.b.) of Policy GB7 is for the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building. The Council consider that the change of use of the chicken sheds to facilities for the dog training centre meets this criteria. From the information before me and my observations on site, I have no reason to take a different view on that matter. This aspect would not represent inappropriate development in the Green Belt.
30. Policy GB7, paragraph 1.f.) of the Framework also sets out that certain other forms of development are not inappropriate in the Green Belt provided the impact on the openness of the Green Belt is minimised, and there would not be a significant conflict with the Green Belt purposes. Two such exceptions are set out at paragraph 1.f.iii.) this being for the material change in the use of land (such as changes of use for outdoor sport or recreation) and at paragraph 1.f.iv.) for the provision of appropriate facilities (in connection with the existing use of land or a change of use).
31. I consider the change of use of the field for dog training facilities would be a form of outdoor recreation and could be considered under criteria 1.f.iii.) with the car park eligible for consideration under criteria 1.f.iv.) as, given its rural location, this would be a necessary facility in order for the public to visit and bring their dogs. As the material change of use involves dividing the field into four smaller recreational plots I consider the low level post and mesh fencing to form part of the material change of use. Whether these aspects accord with the relevant criteria requires consideration of their effect on the openness and purposes of the Green Belt.
32. The Framework states that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open and that the essential characteristics of Green Belts are their openness and their permanence. Planning Practice Guidance (PPG) provides advice on the factors that can be taken into account when considering the potential impact of development on the openness of the Green Belt, with openness being capable of having both spatial and visual aspects.
33. Given the site context that I have previously set out, the use of the field for dog training purposes has a negligible impact on spatial and visual openness.

34. The post and mesh fencing is low level and visually permeable. Given its location around the edge of, and within, the enclosed training field it does not appear as a prominent feature and maintains views across the site.
35. The scale of the carpark is very modest, is bound in a porous gravel which limits any urbanising effect and is viewed against both existing buildings and areas of hardstanding as well as a belt of mature trees immediately to the west which screens it from views outside of the appeal site.
36. The enclosed nature of the appeal site which includes the training field and carpark means it does not appear to encroach into open countryside. The car park and post and mesh fencing has a very limited impact on the spatial and visual openness of the Green Belt. Considering these factors, I find the impact on the openness of the Green Belt has been minimised and neither the carpark, post and mesh fencing, nor the change of use of the field results in any significant conflict with the five Green Belt purposes set out in Policy GB2 of the Framework.
37. Consequently, the change of use of the field, post and mesh fencing and creation of the car park accords with criteria 1.f.iii.) and 1.f.iv.) respectively and is not inappropriate development in the Green Belt.
38. The only other outstanding matter, which has been introduced at the appeal stage, is the acoustic fence. The Council had indicated in the Officer Report that such mitigation would be inappropriate development within the Green Belt due to the scale and nature of such fencing. Having regard to the Framework, it is not clear whether or not this would be inappropriate development or be considered as part and parcel of the change of use. However, as the acoustic fencing did not form part of the original application and given my concerns with noise and that I cannot be certain, based on the information before me, that the acoustic fence would fully address noise concerns, it is not necessary for me to consider this matter further as it would not alter the outcome of the appeal.

Interested parties

39. I recognise and have taken into account the support from existing customers and others, but this is not sufficient in itself to make the development acceptable in planning terms and does not outweigh the policy conflict in this instance.

Other issues

40. I acknowledge the appellants' frustration at the poor handling of the case by the Council and that they have responded to all of the requests that were made of them. However, this is not a matter which weighs in favour of the appeal which has been determined on its planning merits.
41. Although the appellants consider that no development has taken place within the Green Belt, a material change of use of the land has taken place which is development in planning terms.
42. I note that parts of the grounds of Harfield Grove to the north of the appeal site are used for filming purposes and that noise and disturbance may be generated whilst that takes place. Be that as it may, that use is different in nature to the proposal before me and is therefore not directly comparable. It therefore carries limited weight in my overall assessment of the main issue in this appeal.

43. The appeal site is adjacent to Harefield Grove a Grade II listed early 19th century building with Stucco features. Cottage House is a pre-1948 building and sits within the grounds of Harefield Grove. It is therefore deemed to be curtilage listed. Section 66 (1) of The Planning (Listed Buildings and Conservation Areas) Act 1990 requires me to have special regard to the desirability of preserving the buildings or their setting.
44. The significance of Harefield Grove appears to be derived, in part, from its architectural detailing and its rural parkland setting. I am satisfied that the proposed development would preserve the setting of Harefield Grove and would not diminish the ability to appreciate the asset's significance, with the Council also considering that the ability to appreciate the assets significance would not be unduly altered.

Planning Balance & Conclusion

45. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires that applications for planning permission must be determined in accordance with the development plan unless material considerations indicate otherwise.
46. The Framework is a material consideration. Policy S3 of the Framework applies a presumption in favour of sustainable development, where outside of settlements, Policy S5 of the Framework is to be applied. Policy S5 permits certain forms of development outside of settlements stating that these should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
47. Given the nature of the development, I find it would accord with the exception listed at paragraph 1b) of Policy S5 which allows development for rural businesses and services, where a location outside settlements is shown to be necessary. I also note the Council recognise that a rural site is necessary.
48. The proposal would not have an adverse effect on the character and appearance of the area, including the setting of the Grade II listed building or highway safety. However, a lack of harm carries neutral weight in the planning balance.
49. There are several benefits that arise from the development. The business makes a positive contribution to the area in economic terms by providing jobs. The Framework directs that substantial weight is given to the economic benefits of proposals for commercial development. It also provides a convenient and useful facility for dog owners and I note the supportive comments made by many interested parties. It would also reuse a rural building.
50. However, Policy P3 of the Framework also requires that development proposals do not give rise to, or contribute to, unacceptable levels of noise for neighbouring occupiers with adverse impacts avoided or else mitigated to an acceptable degree. As I have set out, on the basis from the information before me at the moment, I cannot be certain this would be the case. I cannot rule out that the development would not have material adverse effects on the living conditions of future residential occupiers of Cottage House in terms of noise and disturbance, in conflict with policies EM8 of HLP1, DM E7 and DMHB11 of HLP2 and D14 of the LP. I thus find that the development is contrary to the development plan as a whole. This is a matter to which I afford substantial weight against the development.

51. Planning decisions often involve competing interests that must be weighed in the balance by the decision maker. In the specific circumstances of this appeal, the benefits of the proposed development would be substantially outweighed by the identified adverse effects of the proposal, when assessed against the national-decision making policies of the Framework as a whole.
52. Accordingly, the identified conflicts with the development plan would not be outweighed by the material considerations. I therefore conclude that the appeal should be dismissed.

T Bennett

INSPECTOR